

Deepankar Singh & Anr vs The State & Anr on 12 March, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ CRL.M.C. 1382/2020

DEEPANKAR SINGH & ANR

..... Petitioners

Through : Mr.Sanjay Soti, Dr.S.S.Tomer, and
Mr.Kunal Khanna, Advocates with
petitioners in person.

versus

THE STATE & ANR

..... Respondents

Through : Mr.M.S.Oberoi, Addl. PP for the
State with SI Kaushik Ghosh, police
station Shahdara, Delhi in person.
Ms.Supriya Juneja, Advocate for
respondent No.2 with R2 in person.

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA

ORDER

% 12.03.2020 Petitioners filed this petition for quashing of the FIR No.356/2011 under Section 406/498A/34 Indian Penal Code registered at police station Shahdara, Delhi against them and the proceedings emanating therefrom.

The petitioner No.1 is husband and complainant/ respondent No.2/wife have settled their disputes amicably per Memorandum of Understanding dated 27.09.2012, annexed with petition and they have already obtained the divorce by mutual consent under the Hindu Marriage Act, 1955 on 20.01.2020 and as last leg of payment an amount of Rs.7.00 lac is being paid vide draft No.023622 dated 07.03.2020 drawn on Axis Bank in favour of respondent No.2, which has been accepted by her today in the Court.

The complainant/respondent No.2 is present along with her learned counsel and has also been duly identified by the Investigating Officer, states the matter has been settled with the petitioners and she has no objection if the FIR is quashed against the petitioners. The copy of Aadhaar Card of respondent No.2 is at pages No.25. The learned APP for the State has also no objection, if this petition is allowed.

Considering the above settlement between the parties, there is no justification to proceed with the criminal case as complainant has settled all the disputes and has received settled amount from petitioners.

Accordingly, the petition is allowed. Consequently, FIR No.356/2011 under Section 406/498A/34 Indian Penal Code registered at police station Shahdara, Delhi and the proceedings emanating therefrom are quashed. No order as to costs. Order dasti.

YOGESH KHANNA, J.

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